judicial action, or where, in the absence of such intent, there was a clear and present danger that judicial action would be improperly influenced.

The line sought to be drawn in the case at bar between cases pending and cases determined has no substantial meaning. To hold that publications may be punished merely because the time for rehearing has not expired exalts form above substance, establishes a criterion lacking in reason and sets a trap for the unwary. The layman seldom knows anything about when rehearings are available. Experience has taught him, moreover, that judges change their minds in a negligible proportion of cases, so that he considers the right to ask for a rehearing illusory.

The "reasonable tendency" test will enmesh anyone who criticizes a judicial decision immediately after it is rendered, if a judge can be persuaded that the critic ought to have foreseen that his words might have some effect on the judge criticized or on the public reaction to courts in general.

If the State may not punish one charged with attempting to overthrow it on a showing only of reasonable tendency to accomplish that unlawful end, it should have no right to punish on a showing of like character for the much less serious offense of contempt.

There were here no special facts to justify the inference that there was any clear danger that obstruction of justice would result from the publication of the telegram. The statements in the telegram were expressed, not with the purpose of interfering with the administration of justice, but with the hope that the Secretary of Labor would find a means of solving the controversy between the two competing unions in a forum other than the judicial one.

In any event, the sending and publication of the telegram were the exercise of the right to petition the government. California had no power to restrict this right by